
2:00 PM - **LINE 10**

25-CLJ-03555

PCA ACQUISITIONS V, LLC VS KEVIN MIRA

PCA ACQUISITIONS V, LLC
KEVIN MIRA

HADA FERNANDEZ
LISA J. ESPADA

DEFENDANT KEVIN MIRA'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES AND REQUEST FOR PRODUCTION OF DOCUMENTS C.C.P. 2030.290 C.C.P. 2031.300

TENTATIVE RULING:

Defendant Kevin Mira's unopposed Motion to Compel Responses to Special Interrogatories and Request for Production of Documents and for Monetary Sanctions is **GRANTED**. (Code Civ. Proc., §§ 2031.290, 2031.300.)

A. Plaintiff Failed to Serve Discovery Responses

When a party fails to serve a timely response to interrogatories, the propounding party may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) The statute imposes no threshold showing of good cause, and there is no meet-and-confer prerequisite and no time deadline within which the motion must be filed. "Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a 'meet and confer' requirement." (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App 4th 390, 404 (*Sinaiko*)). The court in *Sinaiko* further held that "once a party has failed to serve timely interrogatory responses, the trial court has the authority to hear a propounding party's motion to compel responses under section 2030.290, subdivision (b), regardless of whether a party serves an untimely response." (*Ibid.*)

Under section 2030.290 subdivision (a), the non-responding party "waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290 subd. (a).) The court may relieve a party from this waiver only upon a finding that: (1) the party subsequently served a response in substantial compliance with sections 2030.210, 2030.220, 2030.230, and 2030.240; and (2) the failure to timely respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290.)

When a party fails to timely respond to a demand for inspection, copying, testing, or sampling, "the party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300.) As in the case of a motion to compel responses to interrogatories, no showing of good cause, no meet-and-confer effort, and no 45-day deadline applies to motions to compel initial responses under Section 2031.300. (*Sinaiko, supra*, 148 Cal.App.4th 390; Code Civ. Proc., § 2031.300.) The non-responding party likewise automatically waives all objections, including those based on privilege or work product protection. (Code Civ. Proc., § 2031.300.) Relief from waiver is available on the same conditions as under section

2030.290: substantial compliance with the applicable response statutes and a showing that the failure resulted from mistake, inadvertence, or excusable neglect. (*Ibid.*)

Here, defendant served his Special Interrogatories, Set One and Request for Production of Documents, Set One on plaintiff on August 21, 2025. (Espada Decl., ¶ 3, exhs. A, B.) Plaintiff's responses were due by September 25, 2025, and were not received by the time of the filing of the motion. (*Id.*, ¶¶ 3, 9.) Objections have therefore been waived.

Plaintiff is ordered to serve responses, without objections, to Defendant's Special Interrogatories, Set One and Request for Production of Documents, Set One within ten (10) days.

B. Monetary Sanctions

Both of the above-referenced statutes mandate monetary sanctions for unsuccessful motions. Under Section 2030.290, subdivision (c), "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2031.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290.) Section 2031.300 subdivision (c) contains the identical mandatory language for requests for production. (*Id.*, § 2031.300.)

There is no meet-and-confer requirement and no 45-day filing deadline for seeking sanctions in connection with a motion to compel initial responses. (*Sinaiko, supra*, 148 Cal.App.4th 390, at p. 411.) Chapter 7 of the Civil Discovery Act, which governs the types and amounts of sanctions, identifies failing to respond to an authorized method of discovery as a misuse of the discovery process under Code of Civil Procedure, section 2031.010 subdivision (d).

Defendant requests an award of monetary sanctions in the amount of \$2,235.00, representing five hours of attorney time at \$400.00 per hour, and \$235.00 in filing fees. No evidence of substantial justification for the failure to produce discovery responses, or of other circumstances making the imposition of sanctions unjust, is before the court.

Plaintiff PCA Acquisitions V, LLC is **ORDERED TO PAY** \$2,235.00 to defendant Kevin Mira within thirty (30) days of notice of entry of the formal order.

Failure to comply with this Order may result in the imposition of further sanctions, including further monetary sanctions and/or issue, evidence, or terminating sanctions.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - **LINE 11**

CIV475201

CITY OF SAN MATEO VS KAREN GRIGORIAN, ET AL

CITY OF SAN MATEO
IRINA KHACHATOURIAN

MELISSA H. KEYES
GEORGE S. WYNNS

MOTION FOR DECLARATORY RELIEF

TENTATIVE RULING:

Defendants Karen Grigorian and Irina (Khachatourian) Grigorians' Motion for Declaratory Relief is **DENIED for lack of jurisdiction.**

Plaintiff City of San Mateo's (City) Supplemental Request for Judicial Notice is **GRANTED.** (Evid Code, § 452, subd. (d).)

On January 13, 2026, the court issued an order denying defendants Karen Grigorian's and Irina Grigorian's Motion to Vacate Renewal of Judgment under Code of Civil Procedure, section 683.160. On March 5, 2026, defendants filed a Motion for Declaratory Relief. Defendants objected to the "service of the Notice of Renewal that the City of San Mateo filed on or about August 16, 2019" and sought an order "stating that the attempted service on that date was invalid."

On March 16, 2026, defendants filed a notice of appeal. Defendants are appealing the court's January 13, 2026 order. The City's Motion to dismiss that appeal was denied. (See City's RJN.)

While defendants' appeal is pending, this court lacks jurisdiction to hear matters relating to the court's order and the underlying facts and circumstances. (Code Civ. Proc., § 916.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.



POSTED: 3:00 PM